THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal under and in terms of the Section 331 of the Code of Criminal Procedure Act No. 15 of 1979 reads with Article 18 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No:
CA/HCC/0077-78/2022
High Court of Hambanthota
Case No: **HC 190/2005**

1. Jayasekara Liyanarachchige Dhammika *alias* Choota
2. Hewa Suduhakuruge Nandasena
3. Hewa Suduhakuruge Ajith Ranasinghe *alias* Suranga
4. Jayasekara Liyanarachchige Premadasa
5. Jayasekara Liyanarachchige Kalinga *alias* Puncha

Accused

AND NOW BETWEEN

1. Jayasekara Liyanarachchige Bandula
2. Jayasekara Liyanarachchige Dhammika *alias* Choota

Accused – Appellants

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Saliya Pieris, PC with Geeth Karunaratne for the 1st Accused-Appellant.

N. Jayasinghe for the 2nd Accused-Appellant.

Malik Azeez, SC for the Respondent.

Argued on : 30.10.2025 and 31.10.2025

Decided on : 13.02.2026

Pradeep Hettiarachchi, J

Judgment

1. The 1st and 2nd accused-appellants (hereinafter referred to as the 1st and 2nd appellants) were indicted before the High Court of Hambantota along with four other accused for four charges as follows;

    1. *That on or about 23-06-2000, 1st to 6th accused, being the members of an unlawful assembly the common object of which was to cause bodily injury to Hewa Walimunige Ariyatileke; and that thereby committed an offence punishable under Section 140 of the Penal Code;*

    2. *That at the time and the place aforesaid and in the course of same transaction, 1st to 6th accused, being the members of the said unlawful assembly aforesaid committed the murder of the said Hewa Walimunige Ariyatileke; the members of the said unlawful assembly had the knowledge that such offence would have been committed when acting in furtherance of the said common object and therefore by being members of the said unlawful assembly, the 1st to 6th*

accused have committed an offence punishable under Section 296 of the Penal Code read together with Section 140 of the Penal Code;

3. *That at the time and the place aforesaid and in the course of same transaction, the said members of the said unlawful assembly by using sharp cutting weapons caused grievous hurt to Hewa Walimunige Sisira Premakeerthi; had the death of Hewa Walimunige Sisira Premakeerthi occurred the said accused persons would have been guilty for murder or the members of the said unlawful assembly had the knowledge and the intention that the said offence would have been committed while acting in furtherance of the said common object, which is an offence punishable under Section 300 of the Penal Code read together with Section 146 of the Penal Code;*

4. *That at the time and the place aforesaid and in the course of same transaction, committed the murder of Hewa Walimunige Ariyathilaka an offence punishable under Section 296 read together with Section 32 of the Penal Code*

5. *That at the time and the place aforesaid and in the course of same transaction, the 1st to 6th accused persons by using sharp cutting weapons caused grievous hurt to Hewa Walimunige Sisira Premakeerthi and had the death of Hewa Walimunige Sisira Premakeerthi occurred, the said accused persons would have been guilty for murder while acting in furtherance of such common intention which is an offence punishable under Section 300 of the Penal Code read together with Section 32 of the Penal Code;*

2. The trial commenced before the Judge of the High Court without a jury, and at the conclusion of the trial the learned trial Judge found the 1st and 2nd appellant guilty of the 4th and 5th counts of the indictment and convicted them. Accordingly, the 1st and 2nd appellants were sentenced to death. Being aggrieved by the said conviction and sentence, the appellants have preferred the present appeal.

3. Following are the grounds of appeal advanced by the appellants:

For the 1st appellant:

a) PW1 is unworthy of credit and his evidence cannot be relied on;
b) Identification of the appellants is in dispute;
c) Defence version was not considered;
d) On a balance of probability there was a sudden fight.

For the 2nd appellant:

a) The learned has not considered the test of credibility;
b) The High Court Judge relied on unsafe and doubtful evidence pertaining to the identification of the appellant;
c) The learned trial judge based the conviction under common intention based on serious misdirection;
d) The learned trial Judge has failed to consider law relating to common murderous intention; and.
e) The learned trial Judge has rejected the defence evidence on unreasonable grounds.

Background facts

4. Two days prior to the alleged incident, there had been a fight between the 1st and 2nd Accused and the deceased. On the date of the incident, some of the Accused came to the residence of PW1, PW2, and PW3 and engaged in an argument; however, the matter was subsequently settled. The incident that resulted in the death of the deceased and injury to PW1 is alleged to have occurred between 7.30 p.m. and 8.00 p.m.

5. In view of the grounds advanced by both Appellants, the following grounds of appeal may be considered together, as they are common to both Appellants. These grounds relate to the credibility of the prosecution witnesses, whether a proper and reliable identification of the Appellants was made, and whether the defence evidence was adequately considered, or if not, whether it was rejected on unreasonable or improper grounds.

6. The question whether a proper identification was made by the witnesses is a factual issue closely intertwined with the credibility of those witnesses. Accordingly, both matters will be considered together.

7. It is evident that PW1, PW2, PW3, and the deceased are related to one another. It is also apparent that PW1, PW2, and PW3 had known the Appellants from childhood and were not strangers to them.

8. The appellants strenuously contended that the evidence relating to their identification by PW1 and PW2 is unreliable due to the darkness that prevailed at the scene of the alleged offence. It was further argued that, in view of the inconsistencies discernible in the evidence of PW1, it would be unsafe to secure a conviction based solely on his testimony.

9. When a conviction is sought to be founded wholly or substantially on visual identification, especially under difficult lighting conditions, the court must approach such evidence with the utmost caution. The surrounding circumstances, including the source and intensity of light, the distance between the witness and the accused, the duration of observation, prior familiarity, and the absence or presence of obstruction, must be carefully evaluated.

10. In the present case, although it is contended that darkness prevailed at the scene, the evidence must be assessed in its entirety. If PW1 and PW2 had prior acquaintance with the appellants, the degree of caution required may differ from a case involving identification of strangers.

11. Therefore, the determinative question is whether, notwithstanding the lighting conditions and the inconsistencies highlighted, the identification evidence is of such quality and reliability as to safely sustain a conviction beyond reasonable doubt.

12. While the fact that PW1, PW2, and PW3 were familiar with the Appellants from childhood may reduce the risk of mistaken identity, such familiarity does not dispense with the need for the Court to exercise caution in evaluating their evidence.

13. Moreover, such evidence must be subjected to careful scrutiny, particularly where the incident occurred under conditions of poor visibility and where prior animosity between the parties is evident. In such circumstances, the possibility of exaggeration, embellishment, or false implication cannot be entirely ruled out and must be examined in the light of the totality of the evidence.

14. As evidenced from the testimonies of two Judicial Medical Officers, both PW1 and the deceased sustained stab injuries. It is evident that the fatal injuries received by the deceased were inflicted by a sharp, pointed cutting weapon, and some of these injuries were classified as necessarily fatal.

15. Furthermore, the injuries sustained by PW1 were also classified as injuries endangering life. Accordingly, the nature of the injuries, the weapons used to inflict them, and the cause of death have been established by medical evidence beyond reasonable doubt.

16. The question of cardinal importance, therefore, is whether the witnesses correctly identified the Appellants as the persons who committed this crime, particularly in light of the prevailing circumstances at the time, including the lighting conditions at the scene.

17. In this case, PW1, PW2, and PW3 are lay witnesses. PW1, who sustained injuries and survived, was the principal eyewitness. According to PW1, the incident occurred at around 7.30 p.m. On that day, PW1 went to a nearby boutique to purchase cigarettes, where he encountered the deceased. After buying the cigarettes, PW1 was returning, accompanied by the deceased, when they were attacked near the entrance to the compound of the 5th Accused. The witness identified the 1st, 2nd, 3rd, 4th, 5th, and 6th Accused as the persons who assaulted them. PW1 further stated that there were approximately seven persons present, but he could only identify these six accused due to the darkness at the scene.

18. PW1 further stated that the 1st and 2nd Appellants were armed with knives, while the others carried pieces of wood. According to PW1, the 1st Appellant slapped the deceased and then stabbed him. The 2nd Appellant was present and, while armed with a knife, threatened PW1 not to shout. At that time, PW1 attempted to shield the

deceased, during which he was also stabbed by the 1st Appellant, after which he lost consciousness.

19. It is in evidence that, prior to this incident, a function was held at PW1's residence to mark his sister attaining puberty. At that function, the 1st and 2nd Appellants and the deceased had an argument, which escalated into a scuffle on the road. PW2, the brother of PW1, testified that on the day of the incident he had gone to a neighbor's house to watch a teledrama. Upon returning, he suddenly observed a commotion in front of the entrance to the 5th Accused's house and heard someone shouting, "මෙන්න මරනවෝ මරනවෝ" ("He is killing, he is killing"). The witness then saw PW1 and the deceased fallen to the ground and heard PW1 shouting that he had been stabbed. This is also difficult to accept, as PW1 stated in his evidence that he lost consciousness soon after receiving the first stab wound.

20. Thereafter, the witness ran towards his house, screaming, and informed the occupants that his brother and uncle had been stabbed. The witness stated that he only saw the 1st, 2nd, 4th, and 5th Accused at the scene, but he did not observe whether they had actually assaulted or stabbed the deceased and PW1.

21. As admitted by PW1, he was intoxicated at the time of the incident. It is also evident that the incident took place on a gravel road where no street lamps were available. There were no houses with an electricity supply in the immediate vicinity. The evidence of PW5, the Investigating Officer who visited the scene at around 11.00 p.m., confirmed that the incident occurred in an isolated area surrounded by thickets. Moreover, PW5 and the other officers conducted their observations with the aid of the headlights of police vehicles and the torches they carried, as it was pitch dark at the scene.

22. Although there were three houses in the vicinity, they were located approximately 25, 15, and 20 yards away from the scene, and none of them had an electricity supply. PW1, in his testimony, stated that he identified the appellants by their voices and also visually, but not accurately. He testified as follows:

ප්‍ර : ගහන්න පුද්ගලයින් කී දෙනෙක් විතර ආවද ?

උ : මතක හැටියට තුන්, හතරදෙනෙක් හිටියා.

ප්‍ර : තමුන් ඒ පුද්ගලයින් අඳුර ගන්න හැකියාවක් තිබුණද ?

උ : සාමාන්‍යයෙන් අඳුර ගත්තා.

ප්‍ර : ඒ ආපු කට්ටිය අද මේ ගරු අධිකරණයේ ඉන්නවද ?

උ : ඔව්.

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ප්‍ර : බන්දුල, ධම්මික, ප්‍රේමදාසට අමතරව පුද්ගලයින් සාමාන්‍යයෙන් කීදෙනෙක් විතර හිටියද ?

උ : 07ක් විතර හිටියා.

ප්‍ර : ඒ පුද්ගලයින් තුන්දෙනාට අමතරව තව කවුද හිටියේ ?

උ : ඒ ජාමේ මට අඳුර ගන්න අමාරු වුනා රෑනේ.

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23. PW1 further stated that there was another person at the scene, but as it was nighttime, he was unable to identify that person. It is noteworthy that in the statement made to the police, PW1 had not mentioned the name of the 1st appellant at the first instance; he merely stated that somebody had stabbed him and the deceased. This contradiction was marked as D1. It is also important to note that neither the deceased nor PW1 was carrying a torch at the time of the incident. PW1 stated that he managed to identify the appellants by the light emanating from the torches allegedly carried by the appellants themselves, a claim which is highly doubtful.

24. The unreliability of PW1's evidence in relation to the identification of the appellants is further reinforced by the testimony he gave at the non-summary inquiry, which materially deviates from his evidence at the trial. Such inconsistencies are not confined to minor or peripheral matters, but strike at the very root of the prosecution case, namely, the identity of the assailants. In the non-summary inquiry, he stated as follows:

ප්‍ර : ලඝු නොවන නඩු විභාගයේ 77 වන පිටුවේ අවසන් ඡෙදයේ සිට 4 වන

ප්‍රශ්නය කෙරෙහි ගරු අධිකරණයේ අවධානය යොමු කර සිටි. තමුන් ගරු මහේස්ත්‍රාත් අධිකරණයේ දි සාක්ෂි දෙමින් මෙහෙම කියලා තිබෙනවාද? මෙහෙම ප්‍රශ්නයක් අහලා තිබෙනවා තමුන්ගෙන්?

උ : කලුවරේ තමුන් ඡායාවක් දැක්ක නිසා තමන් හිතුවා මේ අය කියලා නේ ද?

ප්‍ර : ඡායාවක් තමයි දැක්කේ. කටහඬවලුත් ඇහුනා. එහෙම කිව්වද තමුන් ?

උ : මතක නැහැ ඒ කට උත්තරය මතක නැහැ.

ප්‍ර : එහෙම ලියවිලා තිබෙනවා නම් තමුන් පිළිගන්නවාද?

උ : පිළිගන්නවා.

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25. It is also pertinent to note that PW1 was examined by Dr. Kithsiri Jagath Kumara at the Hambantota Hospital. Upon examination, Dr. Jagath Kumara prepared the Medico-Legal Report. In the history provided by PW1, none of the appellants were named as the persons who stabbed him. Instead, PW1 stated that he had been stabbed by a group of individuals. PW1 was examined on 06.07.2000, that is, 14 days after the alleged incident, and there is no evidence to suggest that he was in an unstable condition at the time of giving the history. The failure of PW1 to mention the names of any of the appellants when providing the history to the doctor raises further doubt as to the accuracy and reliability of his subsequent identification of the appellants.

26. As emphasized earlier, identification evidence, particularly when it relates to an incident alleged to have taken place at night, in an isolated location, and under conditions of extremely poor visibility, must be approached with the greatest caution. In the present case, the evidence clearly establishes that the area was pitch dark, that there were no street lamps, that nearby houses had no electricity supply, and that the police themselves had to rely on the headlights of their vehicles and handheld torches to make their observations. In such circumstances, the assertion by PW1 that he identified the appellants visually, and additionally by their voices, cannot be accepted without corroboration.

27. Moreover, PW1's own admission that he was intoxicated at the time of the incident further diminishes the reliability of his perception and recall. His evidence that he

identified the appellants by the light emanating from torches allegedly carried by the appellants themselves is inherently improbable. The fact that PW1 was unable to identify another person present at the scene, while claiming to have accurately identified the appellants, only heightens the doubt surrounding his testimony.

28. When these factors are considered cumulatively, the poor lighting conditions, the intoxicated state of the witness, the contradictions between his police statement and testimony, and the inconsistencies between his evidence at the trial and at the non-summary inquiry, it is evident that PW1's identification evidence falls far short of the standard required in a criminal trial. Consequently, it would be unsafe to base a conviction on such evidence without independent and reliable corroboration.

29. The uncertainty surrounding the identification made by PW1 is further demonstrated by the manner in which he described the identification of the 3rd accused. His evidence in this regard reveals hesitation and ambiguity, thereby casting further doubt on the reliability of his purported identification. PW1 testified as follows:

උ	:	නැහැ එක්කෙනෙක් ඡායාවක් දැක්කා නන්දසේන කියලා තමයි හිතාගෙන හිටියේ. පස්දෙනාට අමතරව එක්කෙනෙක් ඇවිල්ලා හිටියා එයා නන්දසේන කියලා තමයි හිතාගෙන හිටියේ.
ප්‍ර	:	තමුන් හිතාගෙන හිටිය එකක් සම්බන්ධයෙන් තමයි ගරු අධිකරණයේ සාක්ෂි දෙන්නේ?
උ	:	නැහැ එයා හිටියේ.
ප්‍ර	:	එයා හිටියා තමුන් දැක්කේ නැහැ?
උ	:	නැහැ එයා හිටියා.
ප්‍ර	:	නන්දසේන හිටියා කියලා පොලිසියට කියලා තිබෙනවාද තමුන්?
උ	:	මතක නැහැ.
ප්‍ර	:	යෝජනා කරනවා නන්දසේන ගැන වචනයකින්වත් පොලිසියට කියලා නැහැ කියලා?
උ	:	මතක නැහැ.

ප්‍ර : එහෙම කියලා නැත්තම් පිළිගන්නවද කියලා නැහැ කියලා?

උ : ඔව්.

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30. It is also significant to note that PW1 never stated whether any of the appellants other than the 2nd appellant, whom he claimed to have identified by their voices, had uttered anything that enabled such identification. PW1 merely asserted that he identified the appellants by their voices, without specifying what was said by each appellant at the relevant time that assisted him in making that identification.

31. The law is well settled that identification by voice, particularly in conditions of poor visibility, is inherently weak unless supported by clear and cogent evidence. In order for such identification to be reliable, the witness must state with precision the words allegedly spoken, the familiarity of the voice, and the circumstances under which the voice was heard.

32. In the present case, PW1 failed to specify any words spoken by any of the appellants or explain how such utterances enabled him to identify each appellant individually. PW1 merely stated that the 2nd appellant threatened him not to shout, which, in my view, would be hardly sufficient to enable any reliable voice identification.

33. In the absence of such particulars, PW1's assertion that he identified the appellants by their voices remains a bare assertion, unsupported by objective or verifiable evidence. Consequently, this alleged identification lacks probative value and cannot safely be relied upon to sustain a conviction. In this regard following authorities would give some guidelines:

34. The well-known decision of ***R –v- Turnbull [1977] QB 224*** is based on the court's acknowledgement of the real risk of miscarriages of justice in visual identification cases and can be distilled from the following passages in the judgment of Lord Widgery CJ:

> *"First, whenever the case against an accused depends wholly or substantially on the correctness of one or more identifications of the accused which the*

defence alleges to be mistaken, the judge should warn the jury of the special need for caution before convicting the accused in reliance on the correctness of the identification or identifications. In addition he should instruct them as to the reason for the need for such a warning and should make some reference to the possibility that a mistaken witness can be a convincing one and that a number of such witnesses can all be mistaken … Secondly, the judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made … Recognition may be more reliable than identification of a stranger; but even when the witness is purporting to recognise someone whom he knows, the jury should be reminded that mistakes in recognition of close relatives and friends are sometimes made. All these matters go to the quality of the identification evidence …[P.228]

When, in the judgment of the trial judge, the quality of the identifying evidence is poor, as for example when it depends solely on a fleeting glance or on a longer observation made in difficult conditions, the situation is very different. The judge should then withdraw the case from the jury and direct an acquittal unless there is other evidence which goes to support the correctness of the identification … The trial judge should identify to the jury the evidence which he adjudges is capable of supporting the evidence of identification. If there is any evidence or circumstances which the jury might think was supporting when it did not have this quality, the judge should say so." The Turnbull guidelines were formulated in the context of visual identification evidence. [P230]

35. In ***The Queen –v- Flynn and St. John [2008] 2 Cr. App. R 20***, the Court of Appeal highlighted the dangers inherent in voice recognition evidence. Gage LJ, having reviewed the evidence of an expert, stated:

"In general terms the expert evidence before us demonstrates the following:

1) *Identification of a suspect by voice recognition is more difficult than visual identification.*

2) *Identification by voice recognition is likely to be more reliable when carried out by experts using acoustic and spectrographic techniques as well as sophisticated auditory techniques, than lay listener identification.*
3) *The ability of a lay listener correctly to identify voices is subject to a number of variables.*

There is at present little research about the effect of variability but the following factors are relevant:

(i) the quality of the recording of the disputed voice or voices;
(ii) the gap in time between the listener hearing the known voice and his attempt to recognise the disputed voice;
(iii) the ability of the individual lay listener to identify voices in general. Research shows that the ability of an individual to identify voices varies from person to person.
(iv) the nature and duration of the speech which is sought to be identified is important. Obviously, some voices are more distinctive than others and the longer the sample of speech the better the prospect of identification.
(v) the greater the familiarity of the listener with the known voice the better his or her chance of accurately identifying a disputed voice. However, research shows that a confident recognition by a lay listener of a familiar voice may nevertheless be wrong."

36. It was submitted on behalf of the respondents that, apart from D1, there are no major contradictions that would tarnish the credibility of PW1 and PW2. It was further contended that, when the evidence is considered in its entirety, no material inconsistencies emerge among the testimonies of the prosecution witnesses.

37. Additionally, it was submitted that, since the appellants were known to the witnesses and are related to each other, there could have been no difficulty in identifying them. Moreover, it was argued that the conduct of the 2nd appellant in holding and waving a knife while threatening PW1 not to shout demonstrates that he acted in furtherance of a common intention.

38. It is worthy to mention that there are some authorities in Indian jurisprudence that provide a different perspective when the issue of identification arises under circumstances similar to that of the case in hand.

39. The below mentioned cases consistently establish that eyewitness identification in low-light or night-time conditions is reliable when the witnesses are familiar with the accused and attentive, particularly i*n rural settings where the villagers' eyesight and perception are adapted to dim light from lanterns, earthen lamps, or starlight, and that identification can be made by facial features, voice, silhouette, shadow, or gait.

40. Even minimal light is generally sufficient for recognition, especially when the accused are known to the witnesses, and the proximity and attentiveness of the witnesses at the time of the incident further support the credibility of their identification. Thus, poor lighting alone does not render identification unreliable.

41. In the case of ***Kalilro Tiwari V. State of Bihar AIR 1997 SC 2186*** Indian Supreme Court held:

> *"where the only source of light at place of occurrence which was village where dacoit in question took place where an earthen lamp, the identification of Accused even in such light would not be problem for villagers especially when many of dacoits were direct relations of complainant. The visibility capacity of urban people who are acclimatized to fluorescent lights or in candescent lamps is not the standard to be applied to villagers whose optical potency is attuned to country- made lamps. Their visibility is conditioned to such lights and hence it would be quite possible for them to identify men and matters in such light.*

42. In the case of ***Kirpal Singh V. T State Uttar Pradesh AIR (1965) 712*** the Indian Supreme Court held thus

> *"It is true that the evidence about identification of a person by the timbre of his voice depending upon subtle variation in the overtones when the person recognizing is not familiar with the person recognized may be somewhat risky in a criminal trial. But where the accused is intimately known to the witness*

and for more than a fortnight before the date of the offence he had met the accused on several occasions in connection with the dispute, it cannot be said that the identification of the assailant by the witness from what he heard and observed was so improbable that the Supreme Court would be justified in disagreeing with the opinion of the court which saw the witness and formed its opinion as to his credibility and of High Court which considered the evidence against the appellant and accepted the testimony."

43. In ***Nathuni Yadav and Others v State of Bihar and Another*** ***AIR 1997 SUPREME COURT 1808*** it was held:

We have considered the said contention from all its angles. Ever assuming that there was no moonlight then, we have to gauge the situation carefully. The proximity at which the assailants would have confronted with the injured, the possibility of some light reaching there from the glove of stars, and the fact that the murder was committed on a roofless terrace are germane factors to be born in mind while judging whether the victims could have had enough visibility to correctly identify the assailants. Over and above those factors, we must bear in mind the further fact that assailants were no strangers to the inmates of the tragedy bound house, the eye witnesses being well acquainted with the physiognomy of each one of the killers. We are, therefore, not persuaded to assume that it would not have been possible for the victims to see the assailants or that there was possibility for making a wrong identification of them. We are keeping in mind the fact that even the assailants had enough light to identity the victims whom they targeted without any mistake from among those who were sleeping on the terrace. If the light then available, though meagre, was enough for the assailants why should we think that same light was not enough for the injured who would certainly have pointedly focused their eyes on the faces of the intruders standing in front of them. What is sauce for the goose is sauce for the gander.

44. The aforementioned Indian authorities elucidate the various circumstances that may assist in making a proper identification of an accused, even under challenging or varying lighting conditions.

45. In light of the aforementioned authorities, the question of whether PW1 was able to identify the Appellants accurately cannot be determined solely by reference to the lighting conditions at the scene. It is evident that the Appellants were known to PW1 from childhood, that they come from the same village, and that they are related to each other. Furthermore, prior to the incident, they had met at a function held at PW1's residence. Accordingly, the accuracy of PW1's identification of the Appellants must be assessed in the context of these factors.

46. However, in evaluating the reliability of the evidence relating to the identification of the appellants, the aforementioned facts must be considered alongside the glaring discrepancies and infirmities present in the prosecution case, particularly in the testimony of PW1. Where the evidence of PW1 lacks consistency and reliability on material aspects of the case, it would be unsafe to act upon such evidence. Where the evidence of identification is coupled with vagueness or material contradictions, the court must be slow to act upon such testimony unless it is corroborated by other reliable evidence. In the present case, the vagueness of PW1's evidence, particularly the inconsistencies discernible therein, raises serious questions regarding the trustworthiness and credibility of his testimony concerning the identification of the appellants.

47. More importantly, the uncertainty, coupled with the inconsistencies that cast doubt on whether PW1 in fact clearly identified the appellants or merely narrated what he overheard, does not inspire sufficient confidence in this Court to affirm the conviction.

48. It is also apparent from the impugned judgment that the learned trial Judge arrived at certain findings against the 2nd appellant that are wholly unsupported by the evidence led at trial. Throughout the judgment, the learned trial Judge observed that the 2nd appellant had also stabbed PW1, although no such evidence was adduced. At pages 288, 405, 406, 414, and 417 of the brief, the learned trial Judge repeatedly states that the 2nd appellant stabbed PW1. This constitutes a clear misapprehension and misrepresentation of the evidence on record.

49. Upon consideration of the foregoing, I am inclined to set aside the conviction and sentence dated 18.03.2022 imposed by the learned High Court Judge of Hambantota. Accordingly, the appeal is allowed, and the 1st and 2nd appellants are acquitted of the charges.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal